UPPER MATTAPONI TRIBE

RESOLUTION NO. 2026-11

THE UPPER MATTAPONI CANNABIS REGULATORY ACT

An Act to establish the Upper Mattaponi Cannabis Control Commission to regulate the cultivation, production, distribution, and sale of cannabis within the Tribe's jurisdiction and to carry out powers and duties necessary to protect the Tribe's health, safety, and economic interests.

At a duly called General Meeting of the Upper Mattaponi Tribal Council held this 28th day of March, 2026, the following Resolution and Law were adopted.

WHEREAS, the Upper Mattaponi Tribe (the "Tribe") is organized under a tribal constitution, dated July 22, 2023 (the "Constitution"); and

WHEREAS, pursuant to Article VII, Section 4(d)(h) of the Constitution, the Council is the governing body of the Tribe with the authority to establish regulatory commissions; and

WHEREAS, the Council has determined that it is in the best interests of the Tribe to adopt the Upper Mattaponi Cannabis Regulatory Act to provide for the regulation of the cultivation, production, distribution, and sale of cannabis within the Tribe's jurisdiction;

NOW THEREFORE BE IT RESOLVED that the Legislature hereby adopts the Upper Mattaponi Cannabis Regulatory Act to be codified into Title 28 of the Upper Mattaponi Tribal Code of Law and authorizes the implementation and enforcement of its provisions, together with any powers, duties, rights, and functions as described therein or as may hereafter be provided by law.

CERTIFICATION

The foregoing Resolution was duly voted upon by the Council on the 28th day of March 2026, at a General Meeting with a vote of 7 in favor and Ø opposed, Ø abstaining, and Ø absent, pursuant to the authority vested in the Council by the Constitution of the Upper Mattaponi Tribe.

Wilma Vicks

Secretary of the Council or Designee

UPPER MATTAPONI TRIBE COUNCIL RESOLUTION NO. 2026-11

SPONSOR: Councilperson O. Adams

COUNCILMEMBERS	YES	NO	ABSTAIN	ABSENT
Ken Adams	✓			
Owen Adams	✓			
Beth Gondos	✓			
Wilma Hicks	✓			
Sonny Knighton	✓			
Connie Lovelace	✓			
Dennis Smith	✓			

ASSISTANT CHIEF (Authorized to break tie votes only): _____

DELIVERY OF THE RESOLUTION AND LAW TO THE CHIEF

Resolution No. 2026-11 was presented to the Chief of the Upper Mattaponi Tribe on the 30th day of March, 2026, pursuant to Article VII, Section 5(f) of the Constitution of the Upper Mattaponi Tribe, and will become effective after signature by the Chief or veto override by the Council.

Wilma Hicks
Secretary of the Council or Designee

CHIEF'S ACTIONS:

☑ Approved

☐ Veto – Returned to Council with Explanation

_____

_____

_____

_____

_____

On this 30TH day of March, 2026.

W. Frank Adams
Chief

Presented to Chief and Council on the _____ day of _____, 2026.

COUNCIL'S ACTIONS:

Override of the Chief's Veto –

☐ Yes

☐ No

COUNCILMEMBERS	YES	NO	ABSTAIN	ABSENT
Ken Adams				
Owen Adams				
Beth Gondos				
Wilma Hicks				
Sonny Knighton				
Connie Lovelace				
Dennis Smith				

CERTIFICATION

The foregoing Resolution was duly voted upon by the Council on _____ day of _____, 2026, at a General Meeting with a vote of _____ in favor and _____ opposed, _____ abstaining, and _____ absent, pursuant to the authority vested in the Council by the Constitution of the Upper Mattaponi Tribe.

_____

Secretary of the Council or Designee

Upper Mattaponi Cannabis Regulatory Act

Chapter 1 General Provisions

100 Short Title

This enactment shall be known as "The Upper Mattaponi Cannabis Regulatory Act."

101 Findings

(A) Cannabis has been used as a medicine for thousands of years. Modern medical research has confirmed the beneficial uses for Cannabis in treating or alleviating the pain, nausea, and other symptoms associated with a variety of debilitating medical conditions, including cancer, multiple sclerosis, and HIV/AIDS.

(B) The Cannabis industry has the potential to be beneficial to the public health of the Upper Mattaponi Tribe and the general welfare of enrolled citizens, including through job creation and economic development.

(C) The growth and success of a Cannabis industry is dependent upon public confidence and trust that:

(1) People who suffer from chronic or debilitating medical conditions will be able to obtain Cannabis in a safe and accessible manner;

(2) Cannabis can reduce the dependency on, or abuse of, opioids;

(3) Cannabis facilities do not unduly impact the quality of life enjoyed by nearby residents and the community at large;

(4) Cannabis facility licenses, laboratory licenses, and agent licenses are issued in a responsible manner; and

(5) The Cannabis industry is free from criminal and corruptive practices.

(D) Public confidence and trust can only be maintained by strict regulation of all persons, locations, practices, associations, and activities related to the operation of Cannabis facilities.

(E) All Cannabis facilities and Cannabis agents must therefore be licensed, controlled, and assisted to protect the public health, safety, ethics, good order, and general welfare of the Tribe and to foster the stability and success of the Tribe's Cannabis industry.

102 Purpose

(A) The purpose of this Act is to:

(1) Regulate and control the cultivation, production, processing, manufacturing, packaging, delivery, transportation, transferring, distribution, sale, possession, consumption, purchase, storage, receipt, and use of all Cannabis activities on Upper Mattaponi Tribal lands;

(2) Provide that citizens of the Upper Mattaponi Tribe, members of other federally recognized tribes, Virginia residents, and other persons have the ability to lawfully obtain, purchase, receive, possess, and use of all Cannabis products in accordance with this Act and any regulations adopted by the Upper Mattaponi Cannabis Control Commission;

(3) Assign the responsibility to regulate all Cannabis activities, including but not limited to adult use of Cannabis and Hemp to the Commission and define and authorize the Commission's powers, duties, and authority; and

(4) Establish protocols and direct the Commission to adopt regulations governing the lawful cultivation, production, processing, manufacturing, packaging, delivery, transportation, transferring, distribution, sale, possession, consumption, purchase, storage, receipt, and use of all Cannabis products.

(B) The purpose of this Act as outlined herein shall be carried out in a manner consistent with applicable law and federal guidance.

(C) This Act allows adult Tribal citizens to grow and possess a limited number of Cannabis plants for their own non-commercial personal use within their own residences on Tribal lands.

103 Authority and Sovereign Immunity

(A) This title is enacted pursuant to the inherent sovereign authority of the Upper Mattaponi Tribe and pursuant to the Constitution of the Upper Mattaponi Tribe, which confers all Legislative power to the Upper Mattaponi Tribe in the Council of the Upper Mattaponi Tribe, and expressly empowers the Council "to create departments, boards, and commissions located in the Executive branch of government by law" (Article VII § 4(d)).

(B) Nothing in this Act shall be construed to limit or waive any aspect of the Upper Mattaponi Tribe's sovereign authority to regulate activities conducted in whole or in part within the boundaries of the Upper Mattaponi Tribe.

(C) The Upper Mattaponi Cannabis Control Commission established by this Act shall be deemed to be an arm of the Upper Mattaponi Tribe and is protected by the same immunity from suit as Tribe pursuant its own sovereign immunity.

104 Jurisdiction, Preemption and Retention of Rights

(A) This Act shall govern Cannabis related activities on lands of the Upper Mattaponi Tribe.

(B) It shall not be a defense to any infraction under this Act that the alleged activity may or may not be lawful under state or federal law.

(C) Any citizen or guest who purchases, consumes, or uses Cannabis products on Upper Mattaponi Tribe property assumes all risks of such purchase, consumption, or use. Nothing in this Act is intended to subject the Upper Mattaponi Tribe to liability for any injuries that occur on property owned by the Upper Mattaponi Tribe that is not otherwise authorized by law.

105 Limitations

(A) Nothing in this Act shall operate or be construed to allow the Commonwealth of Virginia or any political subdivision thereof the ability to impose civil, regulatory, or land use laws within the jurisdiction of the Upper Mattaponi Tribe, unless expressly authorized by a Compact.

(B) This Act strikes a balance between Tribal self-government and any conflict with federal law by providing a strong and effective regulatory and enforcement system to address threats to public safety, public health, and to law enforcement interest and consistent with federal guidance on these issues.

(C) Nothing in this Act shall be construed to permit any person to engage in the following activities or prevent the Tribe or Commission from imposing any civil, criminal, or other penalties for:

(1) Undertaking any task under the influence of Cannabis that would constitute negligence or professional malpractice;

(2) Possessing, selling, or engaging in the use or consumption of Cannabis at any time in violation of or inconsistent with the terms and provisions of this Act and any regulations adopted by the Commission including, but not limited to:

(a) Possessing or using Cannabis on a vehicle that provides group transport to a school, Childcare Facility, or Childhood Program, whether or not the vehicle is owned by a governmental entity; and

(b) Possessing or using Cannabis on the grounds of any School, Childcare Facility, at a Childhood Program, or within a School Zone; and

(3) Activities related to cultivation, production, processing, manufacturing, packaging, delivery, transportation, transferring, distribution, sale, possession, consumption, purchase, storage, receipt, and use of Cannabis that are otherwise illegal under Tribal law or any other applicable law.

(D) To the extent practicable, this Act shall operate to:

(1) Permit the lawful sale, distribution, possession, use, and consumption of Cannabis

to adults twenty-one (21) years of age or older;

(2) Authorize and permit the lawful cultivation, production, processing, manufacturing, packaging, delivery, transportation, transferring, distribution, sale, possession, consumption, purchase, storage, receipt, and use of Cannabis and Cannabis Products by the Commission;

(3) Prevent the distribution of Cannabis to persons under twenty-one (21) years of age;

(4) Prevent revenue from the sale of Cannabis from going to Criminal Enterprises, gangs, and cartels;

(5) Prevent Cannabis activity that is legal under this Act from being used as a cover or pretext for the trafficking of other illegal drugs or other illegal activity;

(6) Prevent violence and the use of firearms in the cultivation and distribution of Cannabis;

(7) Prevent driving under the influence of Cannabis and the exacerbation of other adverse public health consequences associated with the use of Cannabis;

(8) Prevent the growing of Cannabis on lands open to the public and the attendant public safety and environmental dangers posed by Cannabis production on lands open to the public.

(E) This Act shall not be construed to:

(1) Prohibit a recipient of a federal grant or an applicant for a federal grant from prohibiting the manufacture, delivery, possession, or use of Cannabis to the extent necessary to satisfy federal requirements for the grant, unless such provision would be specifically required by said grant;

(2) Prevent a party to a federal contract or a person applying to be a party to a federal contract from prohibiting the manufacture, processing, packaging, delivery, possession, or use of Cannabis to the extent necessary to comply with the terms and conditions of the contract or to satisfy federal requirements for the contract;

(3) Require a person to violate a tribal, state, or federal law or exempt a person from a tribal, state, or federal law or obstruct the enforcement of a tribal, state, or federal law;

(4) Permit any person from operating any type of motor vehicle under the influence of Cannabis; or

(5) Permit the use or possession of Cannabis in Schools, jails or correctional facilities, Childcare Facilities, or at a Childhood Programs.

(F) No person or entity may purchase, cultivate, manufacture, produce, possess, process,

package, store, transport, deliver, transfer, or sell Cannabis or Cannabis products within the Upper Mattaponi Tribal lands, unless licensed to do so by the Commission. The foregoing shall not be interpreted to prevent adults twenty-one (21) years of age or older from purchasing, possessing, transporting, and using Cannabis in accordance with this Act or regulations adopted by the Commission.

(G) Tribal law continues to regulate the cultivation, production, processing, manufacturing, packaging, delivery, transportation, transferring, distribution, sale, possession, consumption, purchase, storage, receipt, and use of Cannabis products on the Upper Mattaponi Tribal lands, and all other conflicting uses under state or federal law, unless authorized by this Act, the Commission, or any regulations adopted by the Commission, are unlawful.

(H) Any person and/or entity that fails to produce a License issued by the Commission upon demand—evidencing the lawful cultivation, production, processing, manufacturing, packaging, delivery, transportation, transferring, distribution, sale, possession, consumption, purchase, storage, receipt, and use of Cannabis and/or Cannabis Products—is *prima facie* evidence that such purported Adult-use Cannabis and/or Cannabis Products is illegal.

106 Definitions

For the purposes of this title, the following terms shall have the following meanings:

(A) "Cannabis" means all parts of the plants in the genus Cannabis, whether growing or not; its seeds, its resin, or any extract containing one or more cannabinoids. Cannabis does not include:

(1) the mature stalks of such plant, fiber produced from such stalk, or oil or cake made from the seed of such plant, unless such stalks, fiber, oil, or cake is combined with other parts of plants of the genus Cannabis;

(2) Industrial Hemp that is possessed by a person who registered with, or holds a hemp producer license issued by, another governmental entity, such as the Commonwealth of Virginia or United States Department of Agriculture;

(3) a Hemp Product;

(4) an Industrial Hemp Extract; or

(5) any substance containing a tetrahydrocannabinol isomer, ester, ether, salt, or salts of such isomer, ester, or ether that has been placed into a drug schedule by the Commonwealth of Virginia's Board of Pharmacy.

(B) "Cannabis agent" or "agent" means a person approved by the Commission to be an owner, officer, board member, employee, or volunteer of a Cannabis facility, an independent contractor who provides labor relating to the cultivation, processing, or sale

of Cannabis or Cannabis products for a Cannabis facility, or an employee or sub-contractor of such an independent contractor.

(C) "Cannabis agent license" or "agent license" means an identification that is issued by the Commission to authorize a person:

(1) To be an owner, officer, or board member of a Cannabis facility; or

(2) To be employed by, volunteer for, work at, or contract to provide labor or services to a Cannabis facility.

(D) "Cannabis facility" means:

(1) A Cannabis laboratory;

(2) A Cannabis cultivation facility;

(3) A Cannabis manufacturing facility; or

(4) A Cannabis retail facility.

(E) "Cannabis cultivation facility" means a business that is licensed by the Commission to cultivate, label, and package retail Cannabis; to purchase or take possession of Cannabis plants and seeds from other Cannabis cultivation facilities; to transfer possession of and sell retail Cannabis, immature Cannabis plants, and Cannabis seeds to Cannabis wholesalers and retail Cannabis stores, foreign and domestic; to transfer possession of and sell retail Cannabis, Cannabis plants, and Cannabis seeds to other Cannabis cultivation facilities; to transfer possession of and sell retail Cannabis to Cannabis manufacturing facilities; and to sell immature Cannabis plants and Cannabis seeds to consumers for the purpose of cultivating Cannabis at home for personal use.

(F) "Cannabis facility license" means a license issued by the Commission to authorize the operation of a Cannabis facility.

(G) "Cannabis laboratory" means a business that is licensed by the Commission to test the plants in the genus Cannabis and products associated and derived therefrom intended for human consumption.

(H) "Cannabis manufacturing facility" means a business that is licensed by the Commission to manufacture, label, and package retail Cannabis and retail Cannabis products; to purchase or take possession of retail Cannabis from a Cannabis cultivation facility or another Cannabis manufacturing facility; and to transfer possession of and sell retail Cannabis and retail Cannabis products to Cannabis wholesalers, retail Cannabis stores, or other Cannabis manufacturing facilities.

(I) "Cannabis product" means a product which contains Cannabis or the extract thereof, including, without limitation, edible Cannabis products intended for human consumption by oral ingestion and presented in the form of a foodstuff, extract, or similar product, or Cannabis-infused products intended for use or consumption by humans through means other than inhalation or oral ingestion, like topical products, ointments, oils, or tinctures.

(J) "Cannabis retail facility" means a business licensed by the Commission to purchase or take possession of retail Cannabis, retail Cannabis products, immature Cannabis plants, or Cannabis seeds from a Cannabis cultivation facility, Cannabis manufacturing facility, or Cannabis wholesaler and to sell retail Cannabis, retail Cannabis products, immature Cannabis plants, or Cannabis seeds to consumers.

(K) "Cannabis Wholesaler" means a business that operates outside the jurisdiction of the Tribe, but sells Cannabis products to a Cannabis retail facility located within the Tribe in a wholesale manner.

(L) "Childcare Facility" means any commercial or residential structure that is used to provide regular care, protection and guidance to children while they are separated from their parent, guardian or legal custodian in a structure that is not the residence of the child.

(M) "Childhood Program" means structured programs designed to support the positive development of children by providing opportunities for skill-building, social engagement, and personal growth.

(N) "Child-resistant" means, with respect to packaging or a container:

(1) specially designed or constructed to be significantly difficult for a typical child under five years of age to open and not to be significantly difficult for a typical adult to open and reseal; and

(2) for any product intended for more than a single use or that contains multiple servings, resealable.

(O) "Act" means the Upper Mattaponi Cannabis Regulatory Act.

(P) "Commission" means the Upper Mattaponi Cannabis Control Commission.

(Q) "Community facility" means a Childcare Facility, a facility hosting a Childhood Program, a public park, a playground, a public swimming pool, a community club building, or a church or other building or place used for religious worship or a religious purpose.

(R) "Concentrated Cannabis" means the extracted or separated resin, whether crude or purified, containing tetrahydrocannabinol (THC) or cannabidiol (CBD) from Cannabis.

(S) "Council" means the Legislative Branch of the Upper Mattaponi Tribe as established in Article VII of the Constitution of the Upper Mattaponi Tribe.

(T) "Criminal Enterprise" means any individual, partnership, corporation, association, or other legal entity, and any union or group of individuals associated in fact, although not a legal entity, who are engaged in ongoing criminal activities.

(U) "Day" means a calendar day not including weekends, Tribal government holidays, or any other day where the government of the Tribe is closed.

(V) "Deliver" or "delivery" means the actual, constructive, or attempted transfer from one person to another of a controlled substance, whether or not there is an agency relationship.

(W) "Electronic verification system" means an electronic database that:

(1) Keeps track of data in real time; and

(2) Is accessible by the Commission and by the Cannabis retail facility.

(X) "Enclosed, locked area" means a closet, display case, room, greenhouse, or other enclosed area that is equipped with locks or other security devices which allow access only by a Cannabis agent.

(Y) "Excluded offense" means a conviction of an offense pursuant to the Upper Mattaponi Tribal Code of Law or an offense that would constitute a felony in the Commonwealth of Virginia, under federal law, or the law of another jurisdiction. This term does not include a criminal offense for which the sentence, including any term of probation, incarceration, or supervised release, or an offense involving conduct that would be immune from arrest, prosecution, or penalty pursuant to this Act except that the conduct occurred before the effective date of this Act or in a jurisdiction other than the Upper Mattaponi Tribe.

(Z) "Executive Director" means the Executive Director of the Upper Mattaponi Tribal Cannabis Control Commission appointed pursuant to this Act.

(AA) "Hemp Product" means a product, including any raw materials from industrial hemp that are used for or added to a food or beverage, that:

(1) contains industrial hemp and has completed all stages of processing needed for the product; and

(2) when offered for retail sale:

(a) contains a total tetrahydrocannabinol concentration of no greater than 0.3 percent; and

(b) contains either no more than two milligrams of total tetrahydrocannabinol per package or an amount of cannabidiol that is no less than 25 times greater than the amount of total tetrahydrocannabinol per package.

(BB) "Industrial Hemp" means a product, including any raw materials from industrial hemp that are used for or added to a food or beverage, that:

(1) contains industrial hemp and has completed all stages of processing needed for the product; and

(2) when offered for retail sale:

(a) contains a total tetrahydrocannabinol concentration of no greater than 0.3 percent; and

(b) contains either no more than two milligrams of total tetrahydrocannabinol per package or an amount of cannabidiol that is no less than 25 times greater than the amount of total tetrahydrocannabinol per package.

(CC) “Industrial Hemp Extract” means an extract

(1) of industrial hemp;

(2) that is intended for human consumption, and

(3) when offered for retail sale, that:

(a) contains a total tetrahydrocannabinol concentration that is no greater than 0.3 percent; and

(b) contains either no more than two milligrams of total tetrahydrocannabinol per package or an amount of cannabidiol that is no less than 25 times greater than the amount of total tetrahydrocannabinol per package.

(4) "Industrial hemp extract" is not a hemp seed-derived ingredient that is approved by the U.S. Food and Drug Administration or is the subject of a generally recognized as safe notice for which the U.S. Food and Drug Administration had no questions.

(DD) “Licensee” means the holder of a Cannabis facility license.

(EE) “Use of Cannabis” means:

(1) The possession, delivery, production, or use of Cannabis or Cannabis products;

(2) The possession, delivery or use of paraphernalia used to administer Cannabis or Cannabis products; or

(3) Any combination of the acts described in paragraphs (Z)(1) and (Z)(2) of this section.

(FF) “Paraphernalia” means accessories, devices and other equipment that is necessary or useful, for a person to engage in the use of, including the consumption of, Cannabis.

(GG) “Person” means a natural person, corporation, limited liability company, or other such or similar entity.

(HH) “School” means any institution that provides primary or secondary education services to children.

(II) “School Zone” means areas within the vicinity of a school or highway where the presence of children on School property or going to or from School reasonably requires special warning to motorists and that are designated as such by a governmental entity.

(JJ) “THC” or “Tetrahydrocannabinol” means any naturally occurring or synthetic tetrahydrocannabinol, including its salts, isomers, and salts of isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation and any preparation, mixture, or substance containing, or mixed or infused with, any detectable amount of tetrahydrocannabinol. For the purposes of this definition, "isomer" means the optical, position, and geometric isomers.

(KK) “Tribe” or “Tribal” means the Upper Mattaponi Tribe.

(LL) “Tribal Lands” or “Lands of the Upper Mattaponi Tribe” means all land, air, and water held in fee simple and in trust by the United States for the benefit of the Upper Mattaponi Tribe.

(MM) “Wholesale” means the selling of goods in large quantities to be retailed or processed by others;

Chapter 2 Upper Mattaponi Cannabis Control Commission

200 Establishment

(A) The Upper Mattaponi Tribe hereby establishes the Upper Mattaponi Cannabis Control Commission.

(B) The Council of the Upper Mattaponi Tribe hereby assigns oversight and regulatory powers to the Upper Mattaponi Cannabis Control Commission to implement the provisions of this Act.

(C) The Upper Mattaponi Cannabis Control Commission shall be independent of, and act independently and autonomously from, the Council of the Upper Mattaponi Tribe in all matters within its purview. No prior or subsequent review by the Council of the Upper Mattaponi Tribe of any action of the Commission is required or permitted except as otherwise provided in this Act or the Constitution of the Upper Mattaponi Tribe.

(D) The Upper Mattaponi Cannabis Control Commission shall be governed by the provisions of this Act and any other relevant laws of the Upper Mattaponi Tribe.

201 Members of the Commission

(A) There shall be three (3) members of the Commission, provided that at least two (2) members of the Commission shall be enrolled citizens of the Upper Mattaponi Tribe.

(B) The Chief shall nominate the members of the Commission and designate one member to serve as Chair, who shall preside over all official activities of the Commission. A member's term shall not begin until their appointment is confirmed by a majority vote of the Council.

(C) It is the intention of the Council that the Commission be made up of the most qualified persons. At least one member of the Commission shall:

(1) Be selected with special reference to his or her knowledge, skill, and experience in general accounting and have a comprehensive knowledge of the principles and practices of corporate finance and auditing, general finance, or economics;

(2) Be selected with special reference to his or her training and experience in the fields of investigation, financial auditing, or corporate compliance;

(3) Be selected with special reference to his or her knowledge, skill, and experience in law or regulatory compliance;

(4) Be selected with special reference to his or her knowledge, skill, and experience in the Cannabis industry; and

(5) Be selected with special reference to his or her knowledge, skill, and experience in the area of medicine, public health, mental health, or be a clinical professional counselor, alcohol and drug counselor, or social worker with knowledge, skill, and experience in the area of education and prevention of abuse relating to Cannabis.

(D) Members of the Commission shall serve in three (3) year staggered terms, with one member's term ending on December 31st of each year.

(E) In addition to any other requirements imposed by this section, the member who is designated as Chair of the Commission must have at least three (3) years of leadership experience in his or her field.

202 Removal of Commission Members

(A) Unless otherwise provided by law, the Council may only remove a member of the Commission from their position on the following grounds:

(1) Malfeasance, misfeasance, or nonfeasance of office;

(2) conviction by any court of any crime involving moral turpitude; or

(3) any other grounds as established by Upper Mattaponi law.

(B) The process for removal of a Commission member by the Council shall be as follows:

(1) the Council may recommend removal of a Commission member through passage of an official resolution setting forth the grounds for removal; and

(2) the Council, after passage of the resolution outlined in subsection (B)(1) of this Section, shall set a hearing date to consider the removal of the Commission member and notify the alleged Commission member in writing by certified mail, return receipt requested. The hearing shall occur no more than ninety (90) days after passage of the resolution outlined in subsection (B)(1) of this Section, and the hearing notice shall occur no less than thirty (30) days before the hearing date.

(3) at the hearing, the alleged Commissioner member shall have the right to protest their removal and defend the allegations against them, including the right to cross-examine any witnesses who testify against them, and shall have the right to be represented by an attorney or other advocate licensed to practice law before the Upper Mattaponi Tribe's courts; and

(4) after the presentation of evidence at the hearing, the Council may remove the Commissioner member from their position upon a majority vote.

203 Prohibited Political Activities and Financial Interests

(A) Elected Tribal officials and appointed Tribal officials are not eligible to serve as Commission members.

(B) A Commission member may not be an official, employee, or agent in any business or organization holding a license under this Act.

(C) Before entering upon the duties of office, each Commission member shall subscribe to the oath of office and, in addition, swear that the member is not an official, employee, or agent of any person, business, or organization holding a license under this Act or doing business with any such person, business, or organization.

204 Meetings, Quorum

(A) The Commission may hold regular and special meetings at such times and places as it may deem convenient, and it shall hold at least one regular meeting each month.

(B) A majority of the currently seated members shall constitute a quorum of the Commission. A majority of members present at any meeting determines the action of the Commission. Vacant seats on the Commission shall not be included in the quorum count.

(C) All meetings of the Commission are open to the public, except that the Commission may hold executive sessions closed to the public.

205 Executive Director

(A) The position of Executive Director of the Cannabis Control Commission is hereby created.

(B) The Executive Director:

(1) Is a salaried employee appointed by the Commission and may be removed by the Commission;

(2) Is responsible for the conduct of the administrative and day-to-day matters of the Commission; and

(3) Shall devote his or her entire time and attention to the business of the office of Executive Director and shall not pursue any other business or occupation or hold any other office for profit if it conflicts with his or her Commission-related duties.

206 Organization, Expenses, Employees

(A) The Executive Director may, subject to the approval of the Commission:

(1) Establish, and from time to time alter, such a plan of organization as they may deem expedient;

(2) Acquire such furnishings, equipment, supplies, stationery, books, motor vehicles and other things as they may deem necessary in carrying out the functions of the Commission; and

(3) Incur such other expenses, within the budget available to the Commission, as they may deem necessary.

(B) Except as otherwise provided in this Act, all costs of administration incurred by the Commission must be paid out of the Tribe's operating budget in the same manner as other governmental expenses are paid.

(C) The Executive Director shall organize the work of the Commission in such a way to secure maximum efficiency in the conduct of the Commission and make recommendations to the Commission for the establishment of Commission departments, staff organization or committees to ensure efficient and defined roles and responsibilities.

(D) The Executive Director may employ such clerical or expert assistance as may be required.

(E) Persons employed by the Commission may be assigned to stations, offices, or locations selected by the Executive Director both within and outside the jurisdiction of the Tribe where, in the judgment of the Executive Director, it is necessary to maintain personnel to protect, investigate, and ensure the safe and lawful conduct of the Cannabis industry on Tribal lands.

(F) Any person assigned to a station, office or location as provided in paragraph (E) of this section shall be eligible to receive a per diem allowance when the business of the Commission takes the person away from the particular station, office, or location to which they are assigned in accordance with the Tribe's travel policies.

207 General Commission Powers

(A) In addition to any other powers granted by this Act, the Commission has the power to:

(1) Establish and amend a plan of organization for the Commission and Commission staff, including, without limitation, various divisions, or sections with leaders for such divisions or sections;

(2) Apply for and accept any grant or other similar source of money, to carry out the provisions of this section;

(3) Prepare, publish, and distribute such studies, reports, bulletins, and other materials as the Commission deems appropriate;

(4) Refer cases to the appropriate tribal, state or federal law enforcement for criminal prosecution;

(5) Monitor federal and state activity regarding Cannabis;

(6) Employ the services of such persons or firms as it considers necessary for the purposes of consultation, investigation, or other professional services; and

(7) Consult with other divisions, departments, or offices of the Tribal government as necessary.

208 Commission Regulations

(A) The Commission shall be responsible for drafting and implementing regulations to fulfill the purposes of this Act. Such regulations shall include specific provisions relating to:

(1) Financial requirements for licensees;

(2) Establishing such investigative and enforcement mechanisms as the Commission deems necessary to ensure the compliance of a licensee or agent with the provisions of this Act;

(3) Requirements for licensees or agents relating to the cultivation, processing, manufacture, transport, distribution, testing, study, advertising, and sale of Cannabis and Cannabis products;

(4) Reasonable restrictions on the signage, marketing, display, and advertising of Cannabis facilities;

(5) Prescribe the form and any additional required content of applications for licenses issued pursuant to this Act;

(6) Establish procedures for the suspension or revocation of a license or other disciplinary action to be taken against a licensee or agent; and

(7) Set forth rules pertaining to the safe and healthful operation of Cannabis facilities, including, without limitation:

(a) The manner of protecting against diversion and theft without imposing an undue burden on Cannabis facilities or compromising the confidentiality of consumers;

(b) Minimum requirements for the oversight of Cannabis facilities;

(c) Minimum requirements for keeping records by Cannabis facilities;

(d) Minimum requirements for the conduct of Cannabis agents;

(e) Provisions for the security of Cannabis facilities, including without limitation, requirements for the protection by a fully operational security alarm system of each Cannabis facility;

(f) Procedures pursuant to which Cannabis facilities must use the services of Cannabis laboratories to ensure that any Cannabis or Cannabis product sold by a Cannabis retail facility to an end user is tested for content, quality, and potency in accordance with standards established by the Commission;

(g) Establish circumstances and procedures pursuant to which the maximum fees set forth in this Act may be reduced over time to ensure that the fees are, insofar as may be practicable, revenue neutral;

(h) As far as possible while maintaining accountability, protect the identity, and personal identifying information of each person who receives, facilitates, or delivers services in accordance with this Act;

(i) The establishment of a schedule of fees for the issuance of licenses and acceptable methods of payment; and

(j) Address such other matters as the Commission deems necessary to carry out the provisions of this Act.

(8) The regulations shall not conflict with, or be held to limit or waive, any aspect of this Act.

(9) The Commission shall present the regulations, and any later amendment thereto, to the Chief of the Upper Mattaponi Tribe for approval by Executive Order. If the Chief does not approve or disapprove of the proposed regulations within 30 days of receipt, the proposed regulations shall be considered disapproved. If the proposed regulations are disapproved by the Chief, the Tribal Council may override said disapproval within 30 days of disapproval by a two-thirds majority vote of the Tribal Council.

(10) Once approved, the Commission's regulations shall have the full force of the law.

(11) It is the duty of all licensees, and agents, under the Act to keep abreast of any amendments to this Act and/or the Commission's regulations.

209 Commission Records

(A) The Commission shall keep minutes of all proceedings at regular and special meetings of the Commission. Minutes of all meetings of the Commission, except executive sessions, shall be publicly available.

(B) The minutes of each Commission meeting, except executive sessions, shall contain an accurate reflection of the votes of each member of the Commission on each motion voted upon.

(C) Non-confidential records of the Commission shall be maintained in accordance with the Tribe's policies and procedures regarding records management and storage.

(D) **Confidential Information and Data.**

(1) Any and all information and data prepared or obtained by the Commission or by an agent or employee of the Commission relating to a holder of, or an applicant for, a Cannabis facility license are confidential and may only be revealed in whole or in part only in the course of the necessary administration of this Act or upon the lawful order of a court of competent jurisdiction.

(2) Confidential information and data shall not include the name of a licensee and each owner, officer, and board member of the licensee. Nor shall it include information relating to the scoring and ranking of applications or the final imposition of disciplinary action.

(3) The Commission may reveal such confidential information and data to an authorized agent of any agency of the United States Government. Notwithstanding any other provision of Upper Mattaponi law, such information and data may not be otherwise revealed without specific authorization by the Commission pursuant to the regulations of the Commission.

(4) Confidential information and data of the Commission shall be maintained by the Executive Director in a secure manner with safeguards to prevent its disclosure to the public except as provided by this Act.

(5) As used in this section, "information and data" means all information and data in any form, including, without limitation, any oral, written, audio, visual, digital, or electronic form, and the term includes, without limitation, any account, book, correspondence, file, message, paper, record, report, or other type of document, including, without limitation, any document containing self-evaluative assessments, self-critical analysis, or self-appraisals of an applicant's or licensee's compliance with regulatory requirements.

210 Audits of Licenses, Standards, Annual Report

(A) The Commission shall cause to be conducted independent financial and operational audits of the accounts, funds, programs, activities, and functions of every facility licensee.

(B) A licensee shall make available to the Commission all books, accounts, claims, reports, vouchers, and other records requested by the Commission in connection with an audit conducted pursuant to paragraph (A) of this section.

(C) If a licensee refuses to produce any of the records described in paragraph (B) of this section, the Commission may petition the Upper Mattaponi Trial Court to order the licensee to produce the requested records. The Trial Court shall order the production of all such records upon a finding that the requested records are within the scope of the audit.

(D) Annual audits shall conform to generally accepted auditing principles, the audit firm must be an independent certified public accountant and must be licensed by a state board of accountancy in accordance with 25 CFR § 571.12(b).

(E) If any audit report of the accounts, funds, programs, activities, and functions of a facility licensee contains adverse or critical audit results, the Commission shall require the facility licensee to respond, in writing, to the results of the audit. A facility licensee shall provide such response to the Commission not more than fifteen (15) days after receiving a request from the Commission.

(F) Each year, the Commission shall submit to the Chief and Speaker of the Council a report concerning the audits conducted pursuant to this section for the preceding year. The report must include, without limitation:

(1) The number of audits performed pursuant to this section in the preceding year;

(2) A summary of the findings of the audits, provided that complete audits are provided to the Council within fifteen (15) days upon request of the Speaker; and

(3) The cost of each audit.

Chapter 3 Use of Cannabis

300 Exemption from Tribal Prosecution for Certain Acts Involving Cannabis

(A) When done in accordance with this Act, the possessing, cultivating, delivering, transferring, transporting, supplying, or selling Cannabis shall not constitute a criminal offense under Upper Mattaponi Law.

(B) A person who holds a valid Cannabis license, including licenses for facilities, laboratories, and agents, and who confines his or her activities to those authorized by this Act, and the regulations adopted by the Commission pursuant thereto, is exempt from tribal prosecution for:

(1) The possession, delivery, or production of Cannabis;

(2) The possession or delivery of paraphernalia;

(3) Aiding and abetting another in the possession, delivery or production of Cannabis;

(4) Aiding and abetting another in the possession or delivery of paraphernalia;

(5) Any combination of the acts described in paragraphs (1) to (4), inclusive; and

(6) Any other criminal offense in which the possession, delivery or production of Cannabis or the possession or delivery of paraphernalia is an element.

(C) In addition to the other requirements of this section, no person may be subject to Tribal prosecution for constructive possession, conspiracy, or any other criminal offense solely for being in the presence or vicinity of the use of Cannabis in accordance with the provisions of this Act.

(D) The persons described in this section must ensure that the Cannabis described in this section are safeguarded in an enclosed, secure location.

(E) As used in this section, "Cannabis" includes, without limitation, Cannabis products.

(F) Persons may cultivate cannabis for personal use in their own home, provided they comply with the restrictions and terms of Title 4.1, Section 1101 of the Code of Virginia for the Commonwealth of Virginia.

Chapter 4 Licensing of Cannabis Facilities and Cannabis Agents

400 License and Purpose

(A) The purpose for licensing Cannabis facilities, laboratories, wholesalers and agents is to protect the public health and safety and the general welfare of the Tribe.

(B) Cannabis licenses are a revocable privilege and the holder of such a license, as applicable, does not acquire thereby any vested right.

401 General Qualifications for Licensure or Agent Registration

(A) Any person who the Commission determines is qualified to receive a license under the provisions of this Act, having due consideration for the proper protection of the health, safety, morals, good order, and general welfare of the Tribe and its enrolled citizens and the declared policy of the Tribe, may be issued a license. The burden of proving an applicant's qualification to receive any license under this Act is on the applicant.

(B) When determining whether to approve an application to receive a license, the Commission may consider whether the applicant is:

(1) A person of good character, honesty, and integrity;

(2) A person whose prior activities, criminal record, if any, reputation, habits, and associations do not pose a threat to the public interest of the Tribe or to the effective regulation and control of Cannabis, or create or enhance the dangers of unsuitable, unfair, or illegal practices, methods and activities in the conduct of Cannabis-related activities, or in the carrying on of the business and financial arrangements incidental thereto; and

(3) In all other respects qualified to be issued a license consistently with the declared policy of the Tribe.

(C) An application to receive a license constitutes a request for a determination of the applicant's general character, integrity, and ability to participate or engage in, or be associated with a Cannabis facility. Any written or oral statement made in the course of an official proceeding of the Commission by any member thereof or any witness testifying under oath which is relevant to the purpose of the proceeding is absolutely privileged and does not impose liability for defamation or constitute a ground for recovery in any civil action.

(D) The Commission may by regulation establish such other qualifications for a license or as it may, in its discretion, deem to be in the public interest and consistent with the declared policy of the Tribe.

(E) Any person granted a license by the Commission must continue to meet the applicable standards and qualifications set forth in this Act and any other qualifications established by the Commission by regulation. The failure to continue to meet such standards and qualifications constitutes grounds for disciplinary action.

402 Licensing Cannabis Facilities

(A) A person shall not engage in the business of a Cannabis facility unless the person holds a Cannabis facility license issued by the Commission pursuant to this section. The Commission is the sole issuer of Cannabis facility licenses. Operating a Cannabis facility without the applicable Cannabis facility license issued by the Commission is unlawful.

(B) A person who wishes to engage in the business of a Cannabis facility must submit to the Commission an application as prescribed by the Commission.

(C) After receiving a complete application to engage in the business of a Cannabis facility, the Commission may deny or approve the application and register the Cannabis facility and issue a Cannabis facility license and an alphanumeric identification number if:

(1) The person who wishes to operate the proposed Cannabis facility has submitted to the Commission all of the following:

(a) The application fee; and

(b) Application, which must include:

(i) The legal name of the proposed Cannabis facility;

(ii) The legal description of the lands where the proposed Cannabis facility will be located and the legal description of lands of any co-owned additional or otherwise associated Cannabis facilities, the locations of which may not be within 1,000 feet of a school that provides formal education traditionally associated with preschool or kindergarten through grade 12 and that existed on the date on which the application for the proposed Cannabis facility was submitted to the Commission, or within 100 feet of a Community Facility or gaming facility that existed on the date on which the application for the proposed Cannabis facility was submitted to the Commission;

(iii) A certification that the location of the proposed Cannabis facility is upon lands of the Upper Mattaponi Tribe, whether held in fee simple or trust;

(iv) Evidence that the applicant controls adequate liquid assets to cover the initial expenses of opening the proposed Cannabis facility and complying with the provisions of this Act;

(v) Evidence that the applicant owns or has lawful possession of the property on which the proposed Cannabis facility will be located or has the written permission of the property owner to operate the proposed Cannabis facility on that property;

(vi) For the applicant and each person who is proposed to be an owner, officer, or board member of the proposed Cannabis facility, a complete set of the person's fingerprints and written permission of the person authorizing the Commission to use the fingerprints for criminal background check purposes, including submission to the Federal Bureau of Investigation for its report; and

(vii) The full legal name, address, and date of birth of each person who is proposed to be an owner, officer, or board member of the proposed licensee.

(c) Operating procedures consistent with Commission regulations for oversight of the proposed Cannabis facility, including, without limitation:

(i) Procedures to ensure the use of adequate security measures; and

(ii) The use of an electronic verification system and an inventory control system pursuant to this Act.

(d) If the proposed Cannabis facility will sell or deliver Cannabis products, proposed operating procedures for handling such products which must be preapproved by the Commission;

(e) Proof that the proposed location is in compliance with all applicable building requirements; and

(f) Such other information or materials as the Commission may require by regulation.

(2) None of the persons who are proposed to be owners, officers, or board members of the proposed Cannabis facility have been convicted of an excluded offense;

(3) None of the persons who are proposed to be owners, officers, or board members of the proposed Cannabis facility have:

(a) Served as an owner, officer, or board member for a Cannabis facility that has had its Cannabis facility license, or equivalent, revoked in any jurisdiction;

(b) Previously had a Cannabis agent license revoked, or equivalent, in any jurisdiction;

(c) Been listed on the United States System for Award Management disbarment list; and

(4) None of the persons who are proposed to be owners, officers, or board members of the proposed Cannabis facility are under twenty-one (21) years of age.

(D) Except as otherwise provided in paragraph (E) of this section, if an application satisfies the requirements of this section, is qualified in the determination of the Commission, and the facility is not disqualified from being registered as a Cannabis facility pursuant to this section or other applicable law, the Commission shall issue to the establishment a Cannabis facility license. A Cannabis facility license expires one (1) year after the date of issuance and may be renewed upon:

(1) Submission of the information required by the Commission by regulation; and

(2) Payment of the renewal fee.

(E) In determining whether to issue a Cannabis facility license pursuant to this section, the Commission shall consider the criteria of merit set forth in this Act.

(F) For the purposes of measuring distances in this section, the distance must be measured from the front door of the proposed Cannabis facility to the front door of a school, Community Facility, or gaming facility.

(G) A Cannabis facility license is not a substitute for a Tribal business license. Licensees must abide by all applicable Tribal laws, rules, and regulations at all times.

(H) The Commission, by regulation, may adopt regulations prescribing requirements for the issuance of licenses to business entities and standards for licensees that are business entities

which are more stringent than the requirements and standards otherwise set forth in this Act.

403 Considerations in Issuing Licenses

(A) In determining whether to issue a Cannabis facility license pursuant to Section 402, the Commission shall, in addition to the factors set forth in that section, consider criteria of merit established by regulation of the Commission. Such criteria must include, without limitation:

(1) Whether the applicant controls liquid assets in an amount determined by the Commission to be sufficient to cover the initial expenses of opening the proposed Cannabis facility and complying with the provisions of this Act;

(2) The previous experience of the persons who are proposed to be owners, officers, or board members of the proposed Cannabis facility at operating other businesses or nonprofit organizations;

(3) The educational and life experience of the persons who are proposed to be owners, officers, or board members of the proposed Cannabis facility;

(4) Any demonstrated knowledge or expertise on the part of the persons who are proposed to be owners, officers, or board members of the proposed Cannabis facility with respect to the responsible use of Cannabis;

(5) Whether the proposed location of the proposed Cannabis facility would be convenient to serve the needs of persons who are authorized to engage in the use of Cannabis;

(6) The likely impact of the proposed Cannabis facility on the community in which it is proposed to be located;

(7) The adequacy of the size of the proposed Cannabis facility to serve the needs of persons who are authorized to engage in the use of Cannabis;

(8) Whether the applicant has an integrated plan for the care, quality, and safekeeping of Cannabis from seed to sale; and

(9) Any other criteria of merit that the Commission determines to be relevant.

404 Cannabis Laboratories

(A) The Commission shall establish standards for the license of Cannabis laboratories to test Cannabis and Cannabis products that are to be sold within the Tribe's jurisdiction. Such a Cannabis laboratory must be able to determine accurately, with respect to Cannabis or Cannabis products that are sold or will be sold at Cannabis retail facilities:

(1) The concentration therein of THC and cannabidiol;

(2) The presence and identification of microbes, molds, and fungus;

(3) The composition of the tested material;

(4) The presence of chemicals in the tested material, including, without limitation, pesticides, heavy metals, herbicides, or growth regulators; and

(5) Demonstrate the validity and accuracy of the methods used by the Cannabis laboratory to test Cannabis and Cannabis products.

(B) To obtain a license to operate a Cannabis laboratory, an applicant must:

(1) Apply successfully as required pursuant to Section 402;

(2) Pay the required fees; and

(3) Become accredited pursuant to standard ISO/IEC 17025 of the International Organization for Standardization within one year after licensure.

405 Inspection or Review of a Cannabis Facility

(A) The Commission may inspect any licensed Cannabis facility whenever it deems necessary to ensure compliance with the requirements of this Act.

(B) The Commission may request information regarding any inspection or review of a Cannabis facility by a Tribal division, department, or office.

(C) The recipient of a reasonable request from the Commission pursuant to this section shall comply with the request as soon as is reasonably practicable after receiving the request.

406 Cannabis Wholesaler Licenses

(A) A person shall not engage in the wholesale of Cannabis products unless the person holds a Cannabis Wholesaler license issued by the Commission pursuant to this section. The Commission is the sole issuer of Cannabis Wholesaler licenses. Sale of wholesale Cannabis products without the applicable Cannabis Wholesaler license issued by the Commission is unlawful.

(B) A person who wishes to engage in the wholesale of Cannabis products to a Cannabis facility must submit to the Commission an application as prescribed by the Commission.

(C) After receiving a complete application to engage in the wholesale of Cannabis products to a Cannabis facility, the Commission may deny or approve the application and issue a Cannabis Wholesaler license and an alphanumeric identification number if:

(1) The person who wishes to engage in the wholesale of Cannabis products to a Cannabis facility has submitted to the Commission all of the following:

(a) The application fee; and

(b) Application, which must include:

(i) The legal name of the proposed licensee;

(ii) The principal place of business of the proposed licensee, including the State, County, and/or Tribal Affiliation;

(iii) Evidence that the Cannabis Wholesaler is licensed to sell Cannabis in the jurisdiction of its principal place of business, along with copies of all licenses to sell Cannabis issued to the proposed licensee; and

(iv) The full legal name, address, and date of birth of each person who is an owner, officer, or board member of the proposed licensee.

(c) Operating procedures consistent with Commission regulations for oversight of the proposed Cannabis facility, including, without limitation:

(i) Procedures to ensure the use of adequate security measures;

(ii) The use of an electronic verification system and an inventory control system pursuant to this Act; and

(iii) Procedures for handling of Cannabis products which must be preapproved by the Commission

(d) Such other information or materials as the Commission may require by regulation.

(2) None of the owners, officers, or board members of the proposed licensee have been convicted of an excluded offense;

(3) None of the persons who are owners, officers, or board members of the proposed licensee have:

(1) Served as an owner, officer, or board member for a Cannabis facility that has had its Cannabis facility license, or equivalent, revoked in any jurisdiction; and

(2) Previously had a Cannabis agent license revoked, or equivalent, in any jurisdiction.

(4) None of the persons who are owners, officers, or board members of the proposed licensee are under twenty-one (21) years of age.

(D) Except as otherwise provided in this section, if an application satisfies the requirements of this section, is qualified in the determination of the Commission, and the proposed licensee

is not disqualified from being registered as a Cannabis Wholesaler pursuant to this section or other applicable law, the Commission shall issue to the applicant a Cannabis Wholesaler license. A Cannabis Wholesaler license expires one (1) year after the date of issuance and may be renewed upon:

(1) Submission of the information required by the Commission by regulation; and

(2) Payment of the renewal fee.

(E) In determining whether to issue a Cannabis Wholesaler license pursuant to this section, the Commission shall consider the criteria of merit set forth in this Act.

(F) A Cannabis Wholesaler license is not a substitute for a Tribal business license. Licensees must abide by all applicable Tribal laws, rules, and regulations at all times.

(G) The Commission, by regulation, may adopt regulations prescribing requirements for the issuance of licenses to business entities and standards for licensees that are business entities which are more stringent than the requirements and standards otherwise set forth in this Act.

407 Agents Required to Register with Board, Requirements

(A) Except as otherwise provided in this section, a person shall not own, manage, operate, work at, be employed by, volunteer, or be an independent contractor or sub-contractor for Cannabis-related services to a Cannabis facility unless the person is licensed as a Cannabis agent pursuant to this Act.

(B) A person who wishes to receive an agent license shall submit to the Commission an application on a form prescribed by the Commission. The application must be accompanied by:

(1) The full legal name, physical and mailing address, and date of birth of the prospective Cannabis agent;

(2) A statement signed by the prospective Cannabis agent pledging not to dispense or otherwise divert Cannabis to any person who is not authorized to possess Cannabis in accordance with the provisions of this Act;

(3) A statement signed by the prospective Cannabis establishment agent asserting that they have not previously had a Cannabis agent license revoked;

(4) Any information required by the Commission to complete an investigation into the background of the prospective Cannabis agent;

(5) The application fee; and

(6) Such other information as the Commission may require by regulation.

(C) The Commission may conduct any investigation of a prospective Cannabis agent and, for an independent contractor, each employee of the prospective Cannabis agent who will provide labor as a Cannabis agent, that the Commission deems appropriate. In connection with such an investigation, the Commission may:

(1) Conduct or accept any background check the Commission determines to be reliable and expedient to determine the criminal history of the prospective Cannabis agent or the employee;

(2) Require a prospective Cannabis agent, if a natural person, and each employee of a prospective Cannabis agent who will provide labor as a Cannabis agent to submit to the Commission a complete set of fingerprints and written permission authorizing the Commission to submit to the Federal Bureau of Investigation for its report; and

(3) If the Commission imposes the requirement described in paragraph (2), submit the fingerprints of the prospective Cannabis agent and each employee of the prospective Cannabis agent who will provide labor as a Cannabis agent to the Federal Bureau of Investigation for its report.

(D) A Cannabis facility shall notify the Commission within five (5) days after a Cannabis agent ceases to hold an ownership interest in the Cannabis facility, be employed by, volunteer at, or provide labor as a Cannabis agent to the Cannabis facility.

(E) A person who has been convicted of an excluded offense, is less than twenty-one (21) years of age, or is not qualified in the determination of the Commission shall not serve as a Cannabis agent.

(F) If an applicant for a Cannabis agent license satisfies the requirements of this section, is found to be qualified by the Commission, and is not disqualified from serving as such an agent pursuant to this section or any other applicable law, the Commission shall issue to the person a Cannabis agent license. A Cannabis agent license expires two (2) years after the date of issuance and may be renewed upon:

(1) Resubmission of the information set forth in this section; and

(2) Payment of the renewal fee.

(G) A Cannabis agent license issued pursuant to this section to an independent contractor or an employee of an independent contractor authorizes the independent contractor or employee to provide labor to any Cannabis facility within the Tribe's jurisdiction.

(H) A Cannabis agent license issued pursuant to this section to a person who wishes to volunteer or work at a Cannabis facility authorizes the person to volunteer or work at any Cannabis facility within the Tribe's jurisdiction for which the category of the Cannabis agent license authorizes the person to volunteer or work.

(I) Except as otherwise prescribed by regulation of the Commission, an applicant for registration or renewal of an agent license is deemed temporarily registered as a Cannabis agent on the date on which a complete application for registration or renewal is submitted to the Commission. A temporary registration as an agent expires sixty (60) days after the date upon which the application is received.

407 License Non-Transferable

Licenses, whether for a facility, laboratory, wholesaler, or agent, are non-transferable, except as otherwise provided by regulations issued by the Commission for the transfer of a license to another person or entity who is qualified to hold a license pursuant to this Act.

408 Grounds for Immediate Revocation of Agent License

(A) The following acts constitute grounds for the immediate revocation of a Cannabis agent license:

(1) Having committed or committing any excluded offense;

(2) Dispensing, delivering, or otherwise transferring Cannabis to a person who is not authorized by law to possess Cannabis in accordance with the provisions of this Act;

(3) Having been electronically recorded by a electronic monitoring system stealing Cannabis or Cannabis products;

(4) Having been convicted of any crime involving the theft of Cannabis or Cannabis products;

(5) Intentionally submitting to the Commission any document required under the provisions of this Act which is false or contains any material misstatement of fact; or

(6) Violating a regulation of the Commission, the violation of which is stated to be grounds for immediate revocation of a Cannabis agent license.

409 Fees

(A) The Commission shall adopt by regulation, annually, a schedules of fees for the issuance of a license under this Act.

(B) Except as otherwise provided in paragraph (C) of this section, the Commission shall collect not more than the following maximum fees:

(1) For the initial issuance of a Cannabis facility license for a Cannabis retail facility: $30,000.00;

(2) For the renewal of a Cannabis facility license for a Cannabis retail facility: $5,000.00;

(3) For the initial issuance of a Cannabis facility license for a Cannabis cultivation facility: $3,000.00;

(4) For the renewal of a Cannabis facility license for a Cannabis cultivation facility: $1,000.00;

(5) For the initial issuance of a Cannabis facility license for a Cannabis manufacturing facility: $3,000.00;

(6) For the renewal of a Cannabis facility license for a Cannabis manufacturing facility: $1,000.00;

(7) For the initial issuance of a Cannabis facility license for a Cannabis laboratory: $5,000.00;

(8) For the renewal of a Cannabis facility license for a Cannabis laboratory: $3,000.00;

(9) For the initial issuance of a Cannabis Wholesaler license: $3,000.00;

(10) For the renewal of a Cannabis Wholesaler license: $1,000.00;

(11) For each person identified in an application for the initial issuance of a Cannabis agent license: $150.00; and

(12) For each person identified in an application for the renewal of a Cannabis agent license: $150.00.

(C) In addition to the fees described in paragraph (A) of this section, each applicant for a Cannabis facility license must pay to the Commission:

(1) A one-time, non-refundable application fee of $5,000; and

(2) The actual costs incurred by the Commission in processing the application, including, without limitation, conducting background checks.

(D) Any revenue generated from the fees imposed pursuant to this section:

(1) Must be expended first to pay the costs of the Commission in carrying out the provisions of this Act; and

(2) If any excess revenue remains after paying the costs described in paragraph (D)(1) of this section, such excess revenue must be paid as instructed by the Department of Finance so as not to comingle such revenue with the Tribe's other monies.

Chapter 5 Requirements Concerning Operations of Cannabis Facilities

500 Location, Land Use and Signage, Change of Location

(A) As used in this Act, the term "Cannabis" also includes Cannabis products unless otherwise excluded.

(B) Each Cannabis facility must:

(1) Comply with all Tribal ordinances and rules pertaining to land development, land use, and signage;

(2) Have an appearance, both as to the interior and exterior, that is professional, orderly, dignified, and consistent with regulations issued by the Commission; and

(3) Have discreet and professional signage that is consistent with regulations issued by the Commission.

(C) Cannabis facilities, including laboratories, shall be constructed, maintained and operated in a manner that adequately protects the environment and the public health and safety. The Commission shall identify and enforce laws, resolutions, codes, policies, standards, and procedures, which are applicable to each Cannabis facility, including laboratories, to ensure adequate protection of the environment and the health and safety of the public.

(D) A Cannabis facility may not change locations without permission from the Commission.

501 Operating Documents, Security, Inspections

(A) The operating documents of a Cannabis facility must include procedures:

(1) For the oversight of the Cannabis facility; and

(2) To ensure accurate recordkeeping.

(B) Except as otherwise provided in this section, a Cannabis facility:

(1) That is a Cannabis retail facility must have a single entrance for patrons, which must be secure, and shall implement strict security measures to deter and prevent the theft and unauthorized entrance into areas containing Cannabis; and

(2) That is not a Cannabis retail facility must have secure entrances and shall implement strict security measures to deter and prevent the theft and unauthorized entrance into areas containing Cannabis.

(C) All cultivation or processing of Cannabis that a Cannabis cultivation facility carries out or causes to be carried out must take place in an enclosed, locked area at the physical address provided to the Commission during the licensing process for the Cannabis facility. Such an enclosed, locked area must be accessible only by Cannabis agents who are lawfully associated with the Cannabis cultivation facility, except that limited access by other persons is permissible if such persons are supervised by a Cannabis agent of the Cannabis facility.

(D) Cannabis facilities are subject to reasonable inspection by the Commission at any time, and a person who holds a license must make himself or herself, or a designee thereof, available and present for any inspection by the Commission of the Cannabis establishment.

(E) Each Cannabis facility shall install a video monitoring system which must, at a minimum:

(1) Allow for the transmission and storage, by digital or analog means, of a video feed which displays the interior and exterior of the Cannabis facility; and

(2) Shall store recordings of video feeds for a period of at least ninety (90) days.

502 Electronic Verification System

(A) Each Cannabis facility, in consultation with the Commission, shall maintain an electronic verification system.

(B) The electronic verification system required pursuant to paragraph (A) of this section must be able to monitor and report information, including, without limitation:

(1) For each Cannabis agent who is employed by or volunteers at the Cannabis facility, the number of the person's Cannabis agent license;

(2) In the case of a Cannabis retail facility, such information as may be required by the Commission by regulation regarding persons who have purchased Cannabis from the retail facility;

(3) Verification of the identity of a person to whom Cannabis is sold or otherwise distributed; and

(4) Such other information as the Commission may require by regulation.

(C) Nothing in this section prohibits more than one Cannabis facility from co-owning an electronic verification system in cooperation with other Cannabis facilities, or sharing the information obtained therefrom.

(D) A Cannabis facility must exercise reasonable care to ensure that the personal identifying information of persons contained in an electronic verification system is encrypted, protected, and not divulged for any purpose not specifically authorized by law.

503 Inventory Control System

(A) Each Cannabis facility, in consultation with the Commission, shall maintain an inventory control system.

(B) The inventory control system required pursuant to paragraph (A) of this section must be able to monitor and report information, including, without limitation:

(1) Insofar as is practicable, the chain of custody and current whereabouts, in real time, of Cannabis from the point that it is harvested at a Cannabis cultivation facility until it is sold at a Cannabis retail facility and/or, if applicable, Cannabis manufacturing facility;

(2) The name of each person or other Cannabis facility, or both, to which the facility sold Cannabis;

(3) In the case of a Cannabis retail facility, the date on which it sold Cannabis to a person and, if any, the quantity of Cannabis sold, measured both by weight and potency; and

(4) Such other information as the Commission may require by regulation.

(C) Nothing in this section prohibits more than one Cannabis facility from co-owning an inventory control system in cooperation with other Cannabis facilities, or sharing the information obtained therefrom.

(D) A Cannabis facility must exercise reasonable care to ensure that the personal identifying information of persons contained in an inventory control system is encrypted, protected, and not divulged for any purpose not specifically authorized by law.

504 Requirements for Storage, Removal, Transportation of Cannabis

(A) At each Cannabis facility Cannabis must be stored only in an enclosed, locked area.

(B) Except as otherwise provided in paragraph (C) of this section, at each Cannabis retail facility, Cannabis must be stored in a secure, locked device, display case, cabinet, or room within the enclosed, locked area. The secure, locked device, display case, cabinet, or room must be protected by a lock or locking mechanism that meets at least the security rating established by the Underwriters Laboratories for key locks.

(C) At a Cannabis retail facility, Cannabis may be removed from the secure setting described in paragraph (B) of this section:

(1) Only for the purpose of selling the Cannabis;

(2) Only immediately before the Cannabis is sold; and

(3) Only by a Cannabis agent who is employed by or volunteers at the retail facility.

(D) A Cannabis facility may:

(1) Transport Cannabis to another Cannabis facility or between the buildings of the Cannabis facility; and

(2) Enter into a contract with a third party to transport Cannabis to another Cannabis facility or between the buildings of the Cannabis facility.

505 Duties of Retail Facilities Relating to Sale of Cannabis

(A) Each Cannabis retail facility shall ensure all of the following:

(1) That Cannabis or Cannabis products are only sold to persons who are at least twenty-one (21) years of age as proven by valid tribal, state, or federal government-issued identification;

(2) The weight, concentration, and content of THC in all Cannabis and Cannabis products that the retail facility sells is clearly and accurately stated on the product sold;

(3) That the retail facility does not sell to a person, in any one transaction, more than two and one-half ounces of Cannabis per day;

(4) That the retail facility does not sell Cannabis products containing more than 10 milligrams of THC per dose or serving;

(5) That the retail facility does not sell Cannabis products containing more than 100 milligrams per package of edible Cannabis products, and where practicable an equivalent amount for other Cannabis products;

(6) That the legal limits on the possession of Cannabis is posted clearly and conspicuously within the retail facility; and

(7) That only persons who are at least twenty-one (21) years of age are allowed to enter the premises of the Cannabis retail facility.

(B) A Cannabis retail facility shall not sell Cannabis or Cannabis products to a consumer through the use of or accept a sale of Cannabis or Cannabis products from, a third party, intermediary business, broker or any other business that does not hold a Cannabis retail facility license or a Cannabis wholesaler license.

(C) The Commission may issue regulations by which a retail facility may sell and deliver Cannabis and Cannabis products to an eligible person through its Cannabis agents outside of a Cannabis retail facility.

506 Requirements Concerning Cannabis Products

(A) Each Cannabis facility shall, in consultation with the Commission, cooperate to ensure that all Cannabis products offered for sale:

(1) Are labeled clearly and unambiguously:

(a) As Cannabis with the words “THIS IS A CANNABIS PRODUCT” in bold type; and

(b) As required by the other provisions of this Act.

(2) Are not presented in packaging that contains an image of a cartoon character, mascot, action figure, balloon, or toy, except that such an item may appear in the logo of the Cannabis facility which produced the product;

(3) Are regulated and sold on the basis of the concentration of THC in the products and not by weight;

(4) Are packaged in a Child-resistant manner.

(5) Are packaged and labeled in such a manner as to allow tracking by way of an inventory control system;

(6) Are not packaged and labeled in a manner which is modeled after a brand of products primarily consumed by or marketed to children;

(7) Are labeled in a manner which indicates the amount of THC in the product, measured in milligrams, and includes a statement that the product contains Cannabis and its potency was tested with an allowable variance of the amount determined by the Commission by regulation; and

(8) Are not labeled or marketed as candy.

(B) A Cannabis manufacturing facility shall not produce Cannabis products in any form that:

(1) Is or appears to be a lollipop;

(2) Bears the likeness or contains characteristics of a real or fictional person, animal or fruit, including, without limitation, a caricature, cartoon or artistic rendering;

(3) Is modeled after a brand of products primarily consumed by or marketed to children; and

(4) Is made by applying concentrated Cannabis to a commercially available candy or snack food item other than dried fruit, nuts, or granola.

(C) A Cannabis manufacturing facility shall:

(1) Seal any Cannabis product that consists of cookies or brownies in a bag or other container which is not transparent;

(2) Affix a label to each Cannabis product which includes without limitation, in a manner which must not mislead consumers, the following information:

(a) The words “Keep out of reach of children;”

(b) A list of all ingredients used in the Cannabis product;

(c) A list of all allergens in the Cannabis product; and

(d) The total content of THC measured in milligrams.

(3) Maintain a hand washing area with hot water, soap and disposable towels which is located away from any area in which Cannabis products are cooked or otherwise prepared;

(4) Require each person who handles Cannabis or Cannabis products to restrain his or her hair, wear clean clothing, and keep his or her fingernails neatly trimmed;

(5) Package all Cannabis products produced by the Cannabis manufacturing facility on the premises of the Cannabis manufacturing facility;

(6) To strictly adhere to applicable tribal, state, or federal food service sanitation laws and regulations;

(7) Require each person to hold and maintain a food handlers permit issued by the Tribe or similar permit issued by the state or federal government;

(D) A Cannabis facility shall not engage in advertising that in any way makes Cannabis or Cannabis products appeal to children, including without limitation, advertising which uses an image of a cartoon character, mascot, action figure, balloon, fruit, or toy;

(E) Each Cannabis retail facility shall regularly offer for sale containers for the storage of Cannabis and Cannabis products which lock and are designed to prohibit children from unlocking and opening the container;

(F) A Cannabis retail facility shall:

(1) Include a written notification with each sale of Cannabis or Cannabis products which advises the purchaser:

(a) To keep Cannabis and Cannabis products out of the reach of children;

(b) That Cannabis products can cause severe illness in children;

(c) That allowing children to ingest Cannabis or Cannabis products or storing Cannabis or Cannabis products in a location which is accessible to children may result in an investigation by an agency which provides child welfare services or criminal prosecution for child abuse or neglect;

(d) That the intoxicating effects of edible Cannabis products may be delayed by two hours or more and users of edible Cannabis products should initially ingest a small amount of the product, then wait at least 120 minutes before ingesting any additional amount of the product;

(e) That pregnant women should consult with a physician before ingesting Cannabis or Cannabis products;

(f) That ingesting Cannabis or Cannabis products with alcohol or other drugs, including prescription medication, may result in unpredictable levels of impairment and that a person should consult with a physician;

(g) That Cannabis or Cannabis products can impair concentration, coordination and judgment and a person should not operate a motor vehicle while under the influence of Cannabis or Cannabis products; and

(h) That ingestion of any amount of Cannabis or Cannabis products before driving may result in criminal prosecution for driving under the influence.

(G) Enclose all Cannabis and Cannabis products in opaque, child-proof packaging upon sale;

(H) A Cannabis retail facility shall not allow any person who is at less than twenty-one (21) years of age to enter the premises of the Cannabis retail facility;

(I) A Cannabis cultivation facility or a Cannabis manufacturing facility may sell a commodity or product made using hemp or containing cannabidiol to a Cannabis retail facility;

(J) In addition to any other product authorized by the provisions of this Act, a Cannabis retail facility may sell:

(1) Any commodity or product made using hemp;

(2) Any commodity or product containing cannabidiol with a THC concentration of not more than 0.3 percent; and

(3) Any other product specified by regulation of the Commission;

(K) A Cannabis facility:

(1) Shall not engage in advertising which contains any statement or illustration that:

(a) Is false or misleading;

(b) Promotes overconsumption of Cannabis or Cannabis products;

(c) Depicts the actual consumption of Cannabis or Cannabis products; or

(d) Depicts a child or other person who is less than twenty-one (21) years of age consuming Cannabis or Cannabis products or objects suggesting the presence of a child, including, without limitation, toys, characters, or cartoons, or contains any other depiction which is designed in any manner to be appealing to or encourage consumption of Cannabis or Cannabis products by a person who is less than twenty-one (21) years of age;

(e) Shall not place a Cannabis advertisement:

(i) Within 1,000 feet of a school, playground, public park, or library, but may maintain such an advertisement if it was initially placed before the school, playground, public park, or library was located within 1,000 feet of the location of the advertisement;

(ii) On or inside of a motor vehicle used for public transportation or any shelter for public transportation;

(iii) At a sports event to which persons who are less than twenty-one (21) years of age are allowed entry; or

(iv) At an entertainment event if it is reasonably estimated that 30 percent or more of the persons who will attend that event are less than twenty-one (21) years of age.

(f) Shall not advertise or offer any Cannabis or Cannabis product as "free" or "donated" without a purchase;

(g) Shall ensure that all advertising by the Cannabis facility contains such warnings as may be prescribed by the Commission, which must include, without limitation, the following words:

(i) "Products should be kept out of reach of children"; and

(ii) "Products may only be used by adults twenty-one (21) years of age and older"; and

(L) In addition to any other penalties provided for by law, the Commission may impose a civil penalty upon a Cannabis facility that violates the provisions of this section as follows:

(1) For the first violation in the immediately preceding two (2) years, a civil penalty not to exceed $1,250.00;

(2) For the second violation in the immediately preceding two (2) years, a civil penalty not to exceed $2,500.00;

(3) For the third violation in the immediately preceding two (2) years, a civil penalty not to exceed $5,000.00; and

(4) For the fourth violation in the immediately preceding two (2) years, a civil penalty not to exceed $10,000.00.

507 Advertising, Selling, Appearing to Sell Cannabis Without a License Is Prohibited

A person shall not advertise the sale of Cannabis or Cannabis products by the person, sell, offer to sell, or appear to sell Cannabis or Cannabis products unless the person holds a Cannabis facility license. Only Cannabis retail facilities may sell Cannabis and Cannabis products to the public, provided, however, Cannabis manufacturing facilities may sell Cannabis and Cannabis products

as a wholesaler to Cannabis retail facilities operating outside the Tribe, provided said retail facilities are properly licensed in the jurisdiction in which they operate.

508 Random Laboratory Assurance Checks

(A) The Commission may establish a program to ensure the integrity of all testing performed by a Cannabis laboratory by subjecting each such laboratory to random laboratory assurance checks.

(B) If the Commission establishes a program pursuant to paragraph (A) of this Section, the Commission shall as a part of the program:

(1) Collect samples of Cannabis or Cannabis products from Cannabis facilities that have already been tested by Cannabis laboratories in amounts deemed sufficient by the Commission;

(2) Remove identifying characteristics from and randomize such samples; and

(3) Provide each Cannabis laboratory with a sample for analysis.

(C) A Cannabis laboratory that receives a sample from the Commission shall perform such quality assurance tests upon the sample as the Commission may require. Such tests may include, without limitation:

(1) Screening the sample for pesticides, heavy metals, chemical residues, herbicides, growth regulators and microbial analysis;

(2) A potency analysis to test for and quantify the presence of the following cannabinoids:

(a) THC;

(b) Tetrahydrocannabinolic acid;

(c) Cannabidiol;

(d) Cannabidiolic acid;

(e) Cannabinol; and

(f) Such other quality assurance tests that the Commission may require.

(3) If the Commission establishes a program pursuant to paragraph (A) of this section, the Commission shall adopt regulations necessary to carry out the program. Such regulations include:

(a) Must require each Cannabis laboratory to perform a random laboratory assurance check at least once every six (6) months but not more frequently than once every three (3) months; and

(b) May modify the procedures and requirements set forth in this section if the Commission determines that advances in science necessitate such a modification;

(4) As used in this section, "random laboratory assurance check" means the evaluation of the performance of a Cannabis laboratory in conducting quality assurance tests upon a sample if required by the Commission under the program established pursuant to paragraph (A) of this section; and

(5) Consumption within a Cannabis facility. The Commission may adopt regulations prescribing the requirements and standards for the consumption of Cannabis and Cannabis products within a Cannabis facility.

Chapter 6 Miscellaneous Licensing Provisions

600 Certain Employees and Persons Exempt from Prosecution

(A) A member or employee of the Commission is exempt from tribal prosecution for any act during the performance of their duties where the member or employee would:

(1) Possess, deliver, or produce Cannabis;

(2) Aid and abet another in the possession, delivery or production of Cannabis;

(3) Performs any combination of the acts described in paragraph (A)(1) and (A)(2) of this section; or

(4) Performs any other criminal offense in which the possession, delivery or production of Cannabis is an element.

The persons described in this section must ensure that the Cannabis described in this section is safeguarded in a secure location.

(B) In addition to the provisions of paragraph (A) of this section, no person may be subject to Tribal prosecution for constructive possession, conspiracy, or any other criminal offense solely for being in the presence or vicinity of the Cannabis in accordance with the provisions of this Act.

(C) As used in this section, "Cannabis" includes, without limitation, Cannabis products.

601 Enforcement of Contracts

(A) It is the public policy of the Tribe that contracts related to the operation of Cannabis facilities under this Act should be enforceable, and no contract entered into by the licensee as permitted pursuant to such a license, or by those who allow property to be used by a licensee as permitted pursuant to such a license, shall be deemed unenforceable on the basis that the actions or conduct permitted pursuant to the license are prohibited by federal law.

(B) The Courts of the Upper Mattaponi Tribe shall have jurisdiction over any party to a contract related to the operation of Cannabis facilities under this Act for the purposes of enforcement of such contract.

602 Petition to Determine if Criminal History is Disqualifying

(A) The Commission shall develop and implement a process by which a person with a criminal history may petition the Commission to review the criminal history of the person to determine if the person's criminal history will disqualify the person from obtaining a license pursuant to this Act.

(B) Not later than ninety (90) days after a petition is submitted to the Commission pursuant to paragraph (A) of this section, the Commission shall inform the person of the determination of the Commission of whether the person's criminal history will disqualify the person from obtaining a license. The Commission is not bound by its determination of disqualification or qualification and may rescind such a determination at any time.

(C) The Commission shall provide instructions to a person who receives a determination of disqualification to remedy the determination of disqualification. A person may resubmit a petition pursuant to paragraph (A) of this section not earlier than six (6) months after receiving instructions pursuant to this section if the person remedies the determination of disqualification.

(D) A person with a criminal history may petition the Commission at any time, including, without limitation, before obtaining any education or paying any fee required to obtain a license from the Commission.

(E) A person may submit a new petition to the Commission not earlier than two (2) years after the final determination of the initial petition submitted to the Commission.

(F) The Commission shall impose a fee of up to $50.00 upon the person to fund the administrative costs in complying with the provisions of this section. The Commission may waive such fees or allow such fees to be covered by funds from a scholarship or grant.

(G) The Commission shall post on its internet website:

(1) The requirements to obtain a license from the Commission; and

(2) A list of crimes, if any, that would disqualify a person from obtaining a license from the Commission.

(H) The Commission shall request the criminal history record of a person who petitions the Commission for a determination pursuant to paragraph (A) of this section.

(I) A person who petitions the Commission for a determination pursuant to paragraph (A) of this section shall not submit false or misleading information to the Commission.

603 Government-to-Government Agreements

(A) The Chief of the Tribe, or their designee, may negotiate one or more intergovernmental agreements to efficiently coordinate the cross-jurisdictional administration of the laws of the Tribe and the laws of the Commonwealth of Virginia relating to Cannabis. The agreements may include, without limitation, provisions relating to:

(1) Criminal and civil law enforcement;

(2) Regulatory issues relating to the possession, delivery, production, processing or use of Cannabis or Cannabis products;

(3) The administration of laws relating to taxation;

(4) Any immunity, preemption, or conflict of law relating to the possession, delivery, production, processing, or use of Cannabis or Cannabis products; and

(5) The resolution of any disputes between a tribal government and the state, which may include, without limitation, the use of mediation or other nonjudicial processes.

(B) Any agreement negotiated pursuant to this section shall not take effect unless and until the agreement is approved by the Council through the legislative process in the form of a bill or resolution.

(C) An agreement entered into pursuant to this section shall:

(1) Provide for the preservation of public health and safety;

(2) Ensure the security of Cannabis establishments;

(3) Establish provisions regulating business involving Cannabis that passes between tribal lands and nontribal lands in Virginia; and

(4) Be negotiated in good faith, which shall respect and protect tribal sovereign immunity.

604 Ownership Limitation

(A) There shall be no Cannabis facility license, other than a license for a Cannabis laboratory or Cannabis wholesaler, issued to any person or entity other than an entity wholly owned by the Tribe and organized under Tribal law.

(B) Entities wholly owned by the Tribe that operate pursuant to a Cannabis facility license shall not comingle revenues generated by the Cannabis facility with other tribal funds. All revenue should be held in a bank account separate from the Tribe's bank account and managed and invested separately from tribal funds.

Chapter 7 Violations, Hearings and Appeals

700 Complaints

(A) If the Commission becomes aware that a licensee or Cannabis agent has violated, is violating or is about to violate any provision of this Act or any regulation adopted pursuant thereto, the Commission may transmit the details of the suspected violation, along with any further facts or information related to the violation, to the appropriate law enforcement agency.

(B) If any person other than the Commission becomes aware that a licensee or Cannabis agent has violated, is violating or is about to violate any provision of this Act or any regulation adopted pursuant thereto, the person may file a written complaint with the Executive Director specifying the relevant facts. The Executive Director shall provide the complaint to the Commission. The Commission shall review each such complaint and, if the Commission finds the complaint not to be frivolous, may transmit the details of a suspected criminal violation, along with any further facts or information derived from the review of the complaint to the appropriate law enforcement agency.

(C) The Commission and its employees shall reasonably cooperate with the appropriate law enforcement agency in the performance of any investigation by responding in good faith to reasonable requests for data, documents, or information.

701 Investigations

(A) The Commission may conduct, or cause to be conducted, an investigation of any suspected violation of this Act or applicable law.

(B) If the Commission transmits the details of a suspected violation to a law enforcement agency pursuant to Section 700, the law enforcement agency shall investigate the matter in accordance with its policies and procedures.

702 Complaint, Answer, Notice of Hearing

(A) If the Commission proceeds with disciplinary action against anyone under its jurisdiction, the Commission shall serve a complaint upon the respondent either personally, or by registered or certified mail at the address of the respondent that is on file with the Commission. Such complaint must be a written statement of charges and must set forth in ordinary and concise language the acts or omissions with which the respondent is charged. The complaint must specify the sections and regulations which the respondent is alleged to have violated, but must not consist merely of charges raised in the language of the sections or regulations. The complaint must provide notice of the right of the respondent to request a hearing. The Chair of the Commission may grant an extension to respond to the complaint for good cause.

(B) Unless granted an extension, the respondent must answer within twenty (20) days after the service of the complaint. In the answer the respondent:

(1) Must state in short and plain terms the defenses to each claim asserted;

(2) Must admit or deny the facts alleged in the complaint;

(3) Must state which allegations the respondent is without knowledge or information to form a belief as to their truth. Such allegations shall be deemed denied;

(4) Must affirmatively set forth any matter which constitutes an avoidance or affirmative defense; and

(5) May demand a hearing. Failure to demand a hearing constitutes a waiver of the right to a hearing and to judicial review of any decision or order of the Commission, but the Commission may order a hearing even if the respondent so waives his or her right.

(C) Failure to answer or to appear at the hearing constitutes an admission by the respondent of all facts alleged in the complaint. The Commission may take action based on such an admission and on other evidence without further notice to the respondent. If the Commission takes action based on such an admission, the Commission shall include in the record which evidence was the basis for the action.

(D) The Commission shall determine the time and place of the hearing as soon as is reasonably practical after receiving the respondent's answer. The Commission shall deliver or send by registered or certified mail a notice of hearing to all parties at least ten days before the hearing. The hearing must be held within forty-five (45) days after receiving the respondent's answer unless an expedited hearing is determined to be appropriate by the Commission, in which event the hearing must be held as soon as practicable.

703 Subpoenas, Depositions

(A) Before a hearing before the Commission, and during a hearing upon reasonable cause shown, the Commission shall issue subpoenas and subpoenas duces tecum at the request of a party.

(B) The testimony of any material witness residing within or without the jurisdiction of the Tribe may be taken by deposition in the manner provided by the Upper Mattaponi Rules of Civil Procedure.

704 Hearing Procedure

(A) At all hearings before the Commission:

(1) Oral evidence may be taken only upon oath or affirmation administered by the Commission.

(2) Every party has the right to:

(a) Call and examine witnesses;

(b) Introduce exhibits relevant to the issues of the case;

(c) Cross-examine opposing witnesses on any matters relevant to the issues of the case, even though the matter was not covered in a direct examination; and

(d) Offer rebuttal evidence.

(3) The respondent cannot be compelled to testify without their consent;

(4) The hearing need not be conducted according to technical rules relating to evidence and witnesses. Any relevant evidence may be admitted and is sufficient in itself to support a finding if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs; and

(5) The parties or their counsel may by written stipulation agree that certain specified evidence may be admitted even though such evidence might otherwise be subject to objection.

(B) The Commission may take official notice of any generally accepted information or technical or scientific matter within the field of Cannabis, and of any other fact which may be judicially noticed by the Upper Mattaponi Trial Court or High Court. The parties must be informed of any information, matters, or facts so noticed, and must be given a reasonable opportunity, on request, to refute such information, matters, or facts by evidence or by written or oral presentation of authorities, the manner of such refutation to be determined by the Commission.

(C) Affidavits may be received in evidence at any hearing of the Commission in accordance with the following:

(1) The party wishing to use an affidavit must, not less than ten (10) days before the day set for hearing, serve upon the opposing party or counsel, either personally or by registered or certified mail, a copy of the affidavit which the party proposes to introduce in evidence together with a notice as provided in paragraph (C)(3) of this section;

(2) Unless the opposing party, within seven (7) days after such service, mails or delivers to the proponent a request to cross-examine the affiant, the opposing party's right to cross-examine the affiant is waived and the affidavit, if introduced in evidence, must be given the same effect as if the affiant had testified orally. If an opportunity to cross-examine an affiant is not afforded after request therefore is made in accordance with this paragraph, the affidavit may be introduced in evidence, but must be given only the same effect as other hearsay evidence; and

(3) The notice referred to in paragraph (C)(1) of this section must be substantially in the following form:

> The accompanying affidavit of [here insert name of affiant] will be introduced as evidence at the hearing set for the … day of the month of … of the year … [Here insert name of affiant] will not be called

to testify orally and you will not be entitled to question [here insert name of affiant] unless you notify the undersigned that you wish to cross-examine [here insert name of affiant]. To be effective your request must be mailed or delivered to the undersigned on or before seven days from the date this notice and the enclosed affidavit are served upon you.

_____
(Party or Counsel)

_____
(Address)

705 Members Present, Reporting

(A) At least three (3) members of the Commission shall be present at every hearing, and they shall exercise all powers relating to the conduct of the hearing and shall enforce all decisions with respect thereto.

(B) The proceedings at the hearing must be reported by either a stenographic or phonographic reporter.

706 Limitations on Communication

After the Commission has initiated a hearing, the members of the Commission shall not communicate, directly or indirectly, in connection with any issue of fact, with any person or party, nor, in connection with any issue of law, with any party or the party's representative, except upon notice and opportunity to all parties to participate.

707 Amended or Supplemental Pleadings

The Commission may, before submission of the case for decision, permit the filing of amended or supplemental pleadings and shall notify all parties thereof, and provide a reasonable opportunity for objections thereto.

708 Contempt

(A) If any person in proceedings before the Commission disobeys or resists any lawful order or refuses to respond to a subpoena, or refuses to take the oath or affirmation as a witness or thereafter refuses to be examined, or is guilty of misconduct during the hearing or so near the place thereof as to obstruct the proceeding, the Commission may certify the facts to the Upper Mattaponi Trial Court.

(B) The Trial Court shall thereupon issue an order directing the person to appear before the Trial Court and show cause why the person should not be punished as for contempt.

(C) The Trial Court order and a copy of the statement of the Commission must be served on the person cited to appear. Thereafter, the Trial Court has jurisdiction of the matter, and the same proceedings must be had, the same penalties may be imposed and the person

charged may purge himself or herself of the contempt in the same way as in the case of a person who has committed a contempt in the trial of a civil action before the Trial Court.

709 Written Decision

(A) Within sixty (60) days after the hearing or service of the complaint, whichever is later, the Commission shall render a written decision on the merits which must contain findings of fact, a determination of the issues presented, and the penalty to be imposed, if any. The Commission shall thereafter make and enter its written order in conformity to its decision as follows:

(1) No member of the Commission who did not hear the evidence may vote on the decision;

(2) The affirmative votes of a majority of the whole Commission are required to impose any penalty;

(3) Copies of the decision and order must be served on the parties personally or sent to them by registered or certified mail; and

(4) The decision is effective upon such service, unless the Commission orders otherwise.

(B) Provided that a petition for judicial review of the decision and order has not been filed, the Commission may, upon motion made within ten (10) days after service of a decision and order, order a rehearing before the Commission upon such terms and conditions as it may deem just and proper as follows:

(1) The motion may only be granted except upon a showing that there is additional evidence which is material and necessary and reasonably calculated to change the decision of the Commission, and that sufficient reason existed for failure to present the evidence at the hearing of the Commission;

(2) The motion must be supported by an affidavit of the moving party or his or her counsel showing with particularity the materiality and necessity of the additional evidence and the reason why it was not introduced at the hearing;

(3) Upon rehearing, rebuttal evidence to the additional evidence shall be permitted; and

(4) After rehearing, the Commission may modify its decision and order as the additional evidence may warrant.

710 Penalties

(A) If the Commission finds that a licensee or agent has violated a provision of this Act or any regulation adopted pursuant thereto, the Commission may take any or all of the following actions:

(1) Limit, condition, suspend or revoke the license;

(2) Impose a civil penalty in an amount established by regulation for each violation; and

(3) Tax the costs associated with the investigation and hearing against the licensee or agent.

711 Judicial Review

(A) Any person aggrieved by a final decision or order of the Commission may obtain a judicial review thereof in the Upper Mattaponi Trial Court.

(B) The judicial review must be instituted by filing a petition with the Trial Court within twenty (20) days after the notice of the final decision or order. The petition must set forth the order or decision being appealed and the grounds or reasons why petitioner contends a reversal or modification should be ordered. A petition may not be filed while a motion for rehearing or a rehearing is pending before the Commission. If a motion for rehearing or rehearing is pending before the Commission, the time to file a petition with the Trial Court shall be tolled until the motion for rehearing or rehearing is decided.

(C) Copies of the petition must be served upon the Commission and all other parties of record, or their counsel of record, either personally or by certified mail.

(D) The Trial Court, upon a proper showing, may permit other interested persons to intervene as parties to the appeal or as friends of the court.

(E) The filing of the petition does not stay enforcement of the decision or order of the Commission, but the Commission itself may grant a stay upon such terms and conditions as it deems proper.

712 Record on Review

(A) Upon written request of the petitioner, the complete record on review, or such parts thereof as are designated by the petitioner, must be prepared by the Commission.

(B) The complete record on review must include copies of:

(1) All pleadings in the case;

(2) All notices and interim orders issued by the Commission in connection with the case;

(3) All stipulations;

(4) The decision and order appealed from;

(5) A transcript of all testimony, evidence and proceedings at the hearing;

(6) The exhibits admitted or rejected; and

(7) Any other papers in the case.

(iii) The original of any document may be used in lieu of a copy thereof.

(iv) The record on review may be shortened by stipulation of all parties to the review proceedings.

(v) The record on review must be filed with the Trial Court within thirty (30) days after service of the petition for review, but the Trial Court may allow the Commission additional time to prepare and transmit the record on review.

713 Additional Evidence, Review, Court Decisions

(A) The Trial Court may, upon motion therefor, order that additional evidence in the case be taken by the Commission upon such terms and conditions as the Trial Court deems just and proper as follows:

(1) The motion shall not be granted except upon a showing that the additional evidence is material and necessary and that sufficient reason existed for failure to present the evidence at the hearing of the Commission;

(2) The motion must be supported by an affidavit of the moving party or his or her counsel showing with particularity the materiality and necessity of the additional evidence and the reason why it was not introduced in the Commission hearing;

(3) Rebuttal evidence to the additional evidence shall be permitted. In cases in which additional evidence is presented to the Commission, the Commission may modify its decisions and orders as the additional evidence may warrant and shall file with the Trial Court a transcript of the additional evidence together with any modifications of the decision and order, all of which become a part of the record on review;

(4) Judicial review shall be confined to the record prepared by the Commission in accordance with this Chapter. The filing of briefs and oral argument must be made in accordance with the Trial Court's rules; and

(5) The Trial Court may affirm the decision and order of the Commission, or it may remand the case for further proceedings or reverse the decision if the substantial rights of the petitioner have been prejudiced because the decision is:

(a) In violation of this Act;

(b) In excess of the authority or jurisdiction of the Commission;

(c) Made upon unlawful procedure;

(d) Unsupported by any evidence; or

(e) Arbitrary or capricious or otherwise not in accordance with law.

(B) Any party may appeal the decision of the Trial Court to the Tribe's High Court in accordance with the High Court's rules and procedures for appeals.

(C) The judicial review afforded in this Act is the exclusive method of review of the Commission's actions, decisions, and orders in disciplinary hearings against a licensee. Review of actions, decisions, and orders of the Commission relating to the denial of a license is pursuant to regulations issued by the Commission.